

refuse to exercise the power granted by this chapter in any case where its declaration or determination is not necessary or proper at the time under all the circumstances.”

The Complaint sufficiently states a declaratory relief cause of action as there is a current controversy whether the Bartels have the right to access Archer Road and whether county is obligated to ensure the Bartels have access to their property.

Accordingly, the Court OVERRULES the demurrer to the 5th cause of action.

6th Cause of Action for Unjust Enrichment: A public entity cannot be held liable on an implied-in-law or quasi-contract theory. (*Pasadena Live v. City of Pasadena* (2004) 114 Cal.App.4th 1089, 1094.) **Accordingly, the Court SUSTAINS the demurrer as to the sixth cause of action without leave to amend.**

4.

CASE #	CASE NAME	HEARING NAME
CVRI2603343	KNEZ VS RIVERSIDE MEDICAL CLINIC, INC.	MOTION TO STRIKE COMPLAINT

Tentative Ruling: The Court SUSTAINS the demurrer to the second cause of action with leave to amend. The Court GRANTS the motion to strike.

Intentional Infliction of Emotional Distress:

Intentional infliction of emotional distress requires: (1) outrageous conduct, (2) intent to cause or reckless disregard of the probability of causing emotional distress, (3) severe emotional distress, and (4) accrual and proximate causation. (*Stoiber v. Honey* (1980) 101 Cal.App.3d 903, 921.) Behavior is outrageous if it exceeds all bounds typically tolerated by decent society. (*Id.*) There is no liability under a claim for intentional infliction of emotional distress for insults, threats, annoyances, indignities, petty oppressions, or other trivial behavior. (*Pilotrik v. Melhaus* (2012) 208 Cal.App.4th 1590, 1610.)

This claim against Clinic is based on it permitting Fernandez-Bell to work in the ENT department and treat, proscribe, and diagnoses patients without any guidance or oversight by a licensed doctor to reduce costs. (Complaint, ¶ 23.) This cause of action is asserted against Fernandez-Bell based on her not being qualified to treat patients with complicated otolaryngology issues, like Plaintiff's. (*Id.* at ¶ 24.) The allegations against Kim are based on Kim knowingly allowing Fernandez-Bell to treat and diagnoses patients in the ENT department and providing no guidance and oversight to Fernandez-Bell. (*Id.* at ¶ 25.) This does not appear to constitute conduct that exceeds all bounds typically tolerated by decent society. (*Stoiber, supra*, 101 Cal.App.3d at 921.) It appears to fit within the perimeters of professional negligence. Negligence is failure to meet a standard of care. As such, the demurrer should be sustained as to this cause of action with leave to amend. Plaintiff argues that whether conduct constitutes outrageous conduct should not be determined on demurrer. However, such a determination is routinely made by courts – *Bock v. Hansen* (2014) 225 Cal.App.4th 215, 235; *Mintz v.*

Blue Cross of California (2009) 172 Cal.App.4th 1594, 1609; *Coleman v. Republic Indemnity Ins. Co.* (2005) 132 Cal.App.4th 403, 416-417; *Richard v. Pacific Indemnity* (1982) 132 Cal.App.3d 886, 895.

Defendants also assert that this cause of action fails because intent has not been sufficiently alleged. In an intentional infliction of emotional distress cause of action, the defendant must either have intended to cause the plaintiff severe emotional distress or recklessly disregarded the probability of causing emotional distress. (*KOVR-TV v. Superior Court* (1995) 31 Cal.App.4th 1023, 1031.) There are no factual allegations that support either intent or reckless disregard, only conclusory assertions that the conduct was reckless. The Court finds that this element of intentional infliction of emotional distress has also not been properly asserted.

Motion to Strike:

A party can bring a motion to strike any irrelevant, false, or improper matters inserted in a pleading. (CCP §436(a).) A motion to strike can also be used to strike any part of a pleading that is not drawn or filed in conformity with the laws of the state, a court rule, or an order of the court. (CCP §436(b).)

Defendants seek to strike the request for punitive damages because it is not allowed under CCP § 425.13(a), until the court grants a motion allowing for said fees and because punitive damages have not been sufficiently alleged. Defendants are correct, Plaintiff is not currently permitted to assert punitive damages.

CCP § 425.13(a) provides:

In any action for damages arising out of the professional negligence of a health care provider, no claim for punitive damages shall be included in a complaint or other pleading unless the court enters an order allowing an amended pleading that includes a claim for punitive damages to be filed. The court may allow the filing of an amended pleading claiming punitive damages on a motion by the party seeking the amended pleading and on the basis of the supporting and opposing affidavits presented that the plaintiff has established that there is a substantial probability that the plaintiff will prevail on the claim pursuant to Section 3294 of the Civil Code. The court shall not grant a motion allowing the filing of an amended pleading that includes a claim for punitive damages if the motion for such an order is not filed within two years after the complaint or initial pleading is filed or not less than nine months before the date the matter is first set for trial, whichever is earlier.

Causes of action like intentional infliction of emotional distress that are directly related to the way defendants provide professional services are governed by CCP § 425.13. (*Central Pathology Service Medical Clinic, Inc. v. Superior Court* (1992) 3 Cal.4th 181, 192-193.) The intentional infliction of emotional distress cause of action is based on the

care provided to Plaintiff. (Complaint, ¶¶ 23 and 24.) As such, CCP § 425.13 is applicable to this cause of action.

Plaintiff concedes this point in opposition but asks that the motion to strike be continued until after a motion under CCP § 425.13 is brought. Plaintiff is not entitled to bring his request for punitive damages until after a motion under CCP § 425.13. No such motion has been filed. The Court GRANTS the motion to strike.